

24LBCV02871 24LBCV02871

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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Case Number: 24LBCV02871 Hearing Date: June 23, 2026 Dept: S27

1. Background

Facts

Plaintiff, Jose Echevarria filed

this action against Defendant, General Motors LLC for violation of Song-Beverly,

breach of implied warranty, and fraud (fraudulent inducement and

concealment).

2. Motions

to Compel

Defendant propounded FROGs, SROGs,

RFAs, and RPDs on Plaintiff on 2/17/26.

On 4/08/26, having received no responses to the discovery, Defendant

filed these motions to compel responses to FROGs, SROGs, and RPDs, as well as

to deem the RFAs admitted.

On 6/11/26, Plaintiff filed

untimely opposition to the motions to compel.

Plaintiff has not filed opposition to the motion to deem RFAs

admitted. The crux of Plaintiff's opposition

is that Defendant has also not responded to discovery, Plaintiff is doing his

best to respond, and Defendant did not meet and confer prior to filing the

motions.

As Plaintiff's attorney is clearly

aware, none of the arguments in the opposition are relevant to the

analysis. Defendant's failure to respond

to Plaintiff's propounded discovery is not the subject of the motion; Plaintiff

is free to seek any relief he chooses to seek, but his entitlement to

affirmative relief does not constitute a defense to Defendant's motion. There is no meet and confer requirement when

a motion is to compel initial, as opposed to further, responses, and Plaintiff

cites no applicable authority in this regard.

Plaintiff finally argues he has "not refused" to serve responses, but

does not argue or establish that he has actually done so. Notably, the trial date is just over a month

away, making time for service of responses "of the essence; Plaintiff does not

indicate when he intends to serve his required responses.

The motions to compel are

granted. Plaintiff must serve responses,

without objections, to the SROGs, FROGs, and RPDs within ten days. CCP §§2030.290(a),(b), 2031.300(a),(b). RFAs are deemed admitted. §2033.280(a), (b).

Sanctions are mandatory in

connection with the motions to compel unless Plaintiff shows good cause or

substantial justification for the failure to timely respond. §§2030.290(c), 2031.300(c). Sanctions are absolutely mandatory in

connection with the motion to deem RFAs admitted, regardless of good cause or

substantial justification. §2033.280(c).

Defendant seeks sanctions in the

amount of \$1000/motion. Defense

Counsel's declaration, however, fails to support the amount requested. Defense Counsel merely states, "Defendant

respectfully requests monetary sanctions against Plaintiff and/or his Counsel

in the amount of \$1000.00 for fees incurred in connection with this

Motion." The Court is required to

determine a fair and reasonable fee.

Absent a statement of hourly rate, tasks billed, or times billed, the

Court cannot do so. The Court will award

one hour to prepare each motion, one hour to reply, and one hour to appear at

the hearing, all at the rate of \$250/hour, or \$1500 in total sanctions.

While Defense Counsel declares he

is seeking sanctions against Plaintiff and/or his attorney, the notices of

motion state sanctions are sought only against Plaintiff and not against

Plaintiff's attorney. Sanctions are

therefore imposed against Plaintiff only and not against his attorney. Plaintiff must pay sanctions to Defendant, by

and through its attorney of record, in the total amount of \$1500, within twenty

days.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If any party does not submit on the

tentative, the party should make arrangements to appear remotely at the hearing

on this matter.